



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1426: unlawful occupants; forcible entry; detainer

NGUYEN FLOOR AMENDMENT

1. Adds language clarifying that this legislation does not apply to or modify the rights or remedies available to landlords and tenants outlined in A.R.S. Title 13, Chapter 10.

ADDITIONAL COW
NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1426
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-1171, Arizona Revised Statutes, is amended to
3 read:

4 12-1171. Acts which constitute forcible entry or detainer

5 A person is guilty of forcible entry and detainer, or of forcible
6 detainer, as the case may be, if ~~he~~ THE PERSON:

7 1. Makes an entry into any lands, tenements or other real property,
8 except in cases where entry is given by law.

9 2. Makes such an entry by force.

10 3. Wilfully and without force holds over any lands, tenements or
11 other real property after termination of the time for which such lands,
12 tenements or other real property were let to him or to the person under
13 whom he claims, after demand made ~~in writing~~ for the possession ~~thereof~~ OF
14 THE LANDS, TENEMENTS OR OTHER REAL PROPERTY by the person entitled to such
15 possession.

16 Sec. 2. Section 12-1173, Arizona Revised Statutes, is amended to
17 read:

18 12-1173. Definition of forcible detainer; substitution of
19 parties; applicability

20 A. There is a forcible detainer if:

21 1. A tenant at will or by sufferance or a tenant from month to
22 month or a lesser period whose tenancy has been terminated retains
23 possession after his tenancy has been terminated or after he receives
24 written demand of possession by the landlord.

25 2. The tenant of a person who has made a forcible entry refuses for
26 five days after written demand to give possession to the person ~~upon~~ ON
27 whose possession the forcible entry was made.

1 3. A person who has made a forcible entry ~~upon~~ ON the possession of
2 one who acquired such possession by forcible entry:

3 (a) Refuses for five days after written demand to give possession
4 to the person ~~upon~~ ON whose possession the first forcible entry was
5 made~~[-]~~[; OR]

6 (b) REFUSES AFTER A REASONABLE REQUEST TO LEAVE AND TO GIVE
7 POSSESSION TO THE PERSON ON WHOSE POSSESSION THE FIRST FORCIBLE ENTRY WAS
8 MADE IF ALL OF THE FOLLOWING APPLY:

9 (i) THE REQUESTING PERSON IS THE PROPERTY OWNER OR THE PROPERTY
10 OWNER'S AUTHORIZED AGENT.

11 (ii) THE PROPERTY INCLUDES A RESIDENTIAL DWELLING OR IS BEING USED
12 FOR RESIDENTIAL PURPOSES.

13 (iii) AN UNAUTHORIZED PERSON IS UNLAWFULLY OCCUPYING THE PROPERTY.

14 (iv) THE PROPERTY OWNER HAS DIRECTED THE UNAUTHORIZED PERSON TO
15 LEAVE.

16 (v) THE PROPERTY WAS NOT OPEN TO THE PUBLIC AT THE TIME THE
17 UNAUTHORIZED PERSON ENTERED THE PROPERTY.

18 (vi) THE UNAUTHORIZED PERSON IS NOT A CURRENT OR FORMER TENANT AT
19 THAT PROPERTY.

20 (vii) THE UNAUTHORIZED PERSON DID NOT HAVE A PRIOR VERBAL OR
21 WRITTEN AGREEMENT TO COHABITATE WITH THE PROPERTY OWNER IN THAT
22 RESIDENTIAL DWELLING.

23 (viii) THE UNAUTHORIZED PERSON IS NOT AN IMMEDIATE FAMILY MEMBER OF
24 THE PROPERTY OWNER.

25 (ix) THERE IS NO LITIGATION PENDING BETWEEN THE PROPERTY OWNER AND
26 THE UNAUTHORIZED PERSON.

27 [(c) THIS SECTION DOES NOT APPLY TO OR MODIFY THE RIGHTS AND
28 REMEDIES AVAILABLE TO LANDLORDS AND TENANTS PURSUANT TO TITLE 33, CHAPTER
29 10.]

30 4. A person who has made a forcible entry ~~upon~~ ON the possession of
31 a tenant for a term refuses to deliver possession to the landlord for five
32 days after written demand, after the term expires. If the term expires
33 while a writ of forcible entry applied for by the tenant is pending, the
34 landlord ~~may~~, at his own cost and for his own benefit, ~~MAY~~ prosecute it in
35 the name of the tenant.

36 B. THE SUPREME COURT SHALL ADOPT RULES TO ALLOW FOR THE EXPEDITIOUS
37 RESOLUTION OF CLAIMS CONSISTENT WITH THIS SECTION. FOR A FORCIBLE
38 DETAINER ACTION BROUGHT PURSUANT SUBSECTION A, PARAGRAPH 3, SUBDIVISION
39 (b) OF THIS SECTION AGAINST AN UNAUTHORIZED PERSON, A WRIT OF RESTITUTION
40 SHALL BE ISSUED IMMEDIATELY AFTER THE COURT SIGNS ANY JUDGMENT AGAINST THE
41 UNAUTHORIZED PERSON.

House Amendments to S.B. 1426

- 1 Enroll and engross to conform
- 2 Amend title to conform

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